THE OUDH LAWS ACT, 1876

ARRANGEMENT OF SECTIONS

PREAMBLE.

PART I
PRELIMINARY

SECTIONS.

1. Short title.
   Local extent.
   Commencement.
2. [*Repealed*.].

PART II
GENERAL LAWS TO BE ADMINISTERED IN OUDH

3. Statutory law to be administered in Oudh.
4. Validity of local customs and mercantile usages.

PART III
CHAPTER I
DOWER AMONG MUHAMMADANS

5. Muhammadan dower contracts how to be enforced Rule applicable after husband's death.

CHAPTER II
PRE-EMPTION

6. Right of pre-emption.
7. as to its existence.
8. Its existence in towns to be proved.
9. Devolution of right when property to be sold or foreclosed is a proprietary or under proprietary tenure
9A. When a suit for pre-emption lies.
10. Notice to pre-emptors.
11. Loss of right of pre-emption.
12. Right of pre-emptor on foreclosure.
13. Suit to enforce right of pre-emption.
14. Decree to fix time for payment.
15. Effect of non-payment of purchase-money.

IndiaCode

CHAPTER III
PROCEDURE OF THE COURTS

16. Rule of limitation.
17. [*Repealed*.]
18. [*Repealed*.]
19. Rules for taking evidence.
20. Execution-sale of ancestral and acquired property in land.
21. [*Repealed*.]
22. Service of process within jurisdiction of Luck Court.
23. [*Repealed*.]
24. [*Repealed*.]
25. [*Repealed*.]
26. Revenue-agents authorized to appear, etc., in rent-suits.
27. Power to make rules for custody and sale of a property.
28. [*Repealed*.]

CHAPTER IV
VILLAGE AND ROAD-POLICE

29. Right to nominate village-policemen.
30. Obligation to nominate.
31. Discretion to appoint or reject nominee.
32. Power to Government to appoint. Procedure in case of rejection of nominee.
33. Appointment of road-police.
34. Duties of village and road-policemen.
35. Procedure on arrest by village or road-policeman
36. Dismissal of village or road-policeman.
37. Acts punishable. Penalty.
38. Fines to be credited to such fund as Government appoints.

CHAPTER V
SUBSIDIARY RULES

39. Power to make rules
40. Publication of rules.
41. [*Repealed*.]
42. Penalty for breach of rules.

CHAPTER VI
MISCELLANEOUS
Honorary Civil Jurisdiction

43. [*Repealed*.]

Honorary police-officers

44. Honorary police-officers.

Creation and alteration of districts and sub-divisions

45. [*Repealed*.]

THE FIRST SCHEDULE—[*Repealed*.]

THE SECOND SCHEDULE.

IndiaCode

THE OUDH LAWS ACT, 1876

ACT NO. 18 OF 1876

[10*th October*, 1876.]

An Act to declare and amend the laws to be administered in Oudh.

Preamble.—WHEREAS it is expedient to declare and amend the laws to be administered in Oudh; It is hereby enacted as follows:—

PART I
PRELIMINRY

1. Short title.—This Act may be called the Oudh Laws Act, 1876.

Local extent.— It extends only to [1]* * * Oudh ;

Commencement.—and it shall come into force on the passing thereof.

2. [*Repeal of enactments*.]—*Rep. by the Repealing Act*, 1938 (1 *of* 1938), *s.* 2 *and Sch.*

PART II
GENERAL LAWS TO BE ADMINISTERED IN OUDH

[2]**3. Statutory law to be administered in Oudh.**—The law to be administered by the Courts of Oudh shall be as follows:

(*a*) The laws for the time being in force regulating the assessment and collection of land-revenue.

(*b*) In questions regarding succession, special property of female betrothal, marriage, divorce, dower, adoption, guardianship, minority, bastardy, family relations, wills, legacies, gifts, partitions or any religious usage or institution, the rule of decision shall be—

(l) any custom applicable to the parties concerned which is not contrary to justice equity or good conscience, and has not been, by this or any other enactment, altered or abolished, and has not been declared to be void by any competent authority;

(*2*) the Muhammadan law in cases where the parties are Muhammadans, and the Hindu law in cases where the parties are Hindus, except in so far as such law has been, by this or any other enactment, altered or abolished, or has been modified by any such custom as is above referred to:

(*c*) the rules contained in this Act:

(*d*) the rules published in the Official Gazette as provided by section 40, or made under any other Act for the time being in force in Oudh:

(*e*) the Regulations and Acts specified in the second schedule hereto annexed, subject to the provisions of section 4, and to the modifications mentioned in the third column of the same schedule:

(*f*) subject to the modifications hereinafter mentioned, all enactments for the time being in force

1. The words "the territories for the time being administered by the Chief Commissioner of" rep. by the A.O. 1937.
2. The provisions of this section have been rep. in so far as they are inconsistent with the Muslim Personal Law (Shariat) Application Act, 1937 (26 of 1937); *see* s. 6 of that Act.

and expressly, or by necessary implication, applying to [1][the territories which, immediately before the 1st November, 1956, were comprised in Part A States and Part C States] or Oudh, or some part of Oudh:

(*g*) In cases not provided for by the former part of this section, or by any other law for the time being in force, the Courts shall act according to justice, equity and good conscience.

4. Validity of local customs and mercantile usage.—All local customs and mercantile usages shall be regarded as valid, unless they are contrary to justice, equity or good conscience, or have, before the passing of this Act, been declared to be void by and competent authority.

PART III

CHAPTER I

DOWER AMONG MUHAMMADANS

5. Muhammadan dower contracts how to be enforced.—Where the amount of dower stipulated for in any contract of dower by a Muhammadan is excessive with reference to the means of the husband, the entire sum provided in the contract shall not be awarded in any suit by decree in favour of the plaintiff, or by allowing it by way of set-off, lien or otherwise to the defendant; but the amount of the dower to be allowed by the Court shall be reasonable with reference to the means of the husband and the status of the wife.

Rule applicable after husband's death.—This rule shall be applicable whether the suit to enforce the contract be brought in the husband's life time or after his death.

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CHAPTER II

PRE-EMPTON

6. Right of pre-emption.—The right of pre-emption is a right of the persons hereinafter in mentioned or referred to, to acquire, in the cases hereinafter specified, immovable property in preference to all other persons.

7. Presumption as to its existence.—Unless the existence of any custom or contract to the contrary is proved, such right shall, whether recorded in the settlement-record or not, be presumed—

(*a*) to exist in all village-communities, however constituted, and whether proprietary or under-proprietary, and in the cases referred to in section 40 of the Oudh Land-revenue Act, [2](17 of 1876) , and

(*b*) to extend to the village-site, to the houses built upon it, to all lands and shares of lands within the village-boundary, and to all transferable rights affecting such lands.

8. Its existence in towns to be proved.—The right of pre-emption shall not be presumed to exist in any town or city, or any sub-division thereof, but may be whom to exist therein and to be exercisable therein by such persons and under such circumstances as the local custom prescribes.

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1. Subs. by the Adaptation of Laws (No.2) Order, 1956, for "Part A States and Part C States".
2. *See* now the U.P. Land Revenue Act, 1901 (U.P. 3 of 1901).

9. Devolution of right when property to property to be sold or foreclosed is a proprietary or under proprietary tenure.—If the property to be sold or foreclosed is a proprietary or under-proprietary tenure, or a share of such a tenure, the right to buy or redeem such property belongs, in the absence of a custom to the contrary, —

1st, to co-sharers of the sub-division (if any) of the tenure in which the property is comprised, in order of their relationship to the vendor or mortgagor;

2ndly, to co-sharers of the whole mahal in the same order;

3rdly, to any member of the village-community; and

4thly, if the property be an under-proprietary tenure, to the proprietor.

Where two or more persons are equally entitled to such right, the person to exercise the same shall be determined by lot.

[1][**9A. When a suit for pre-emption lies.**—No suit shall lie for enforcing a right of pre-emption under this Act in respect of a portion only of the property sold or foreclosed:

Provided that, where the plaintiff has a right of pre-emption in respect of only a portion of the property sold or foreclosed, then notwithstanding anything to the contrary contained in any enactment a suit for the pre-emption of that portion only shall lie and the plaintiff shall have to pay the proportionate price or the proportionate amount due in respect of such mortgage for such portion of the property, as the case may be.]

10. Notice to pre-emptors.—When any person proposes to sell any property, or when he forecloses a mortgage upon any property, in respect of which any persons have a right of pre-emption, he shall give notice to the persons concerned of the price at which he is willing to sell such property, or of the amount due in respect of such mortgage, as the case may be:

[2][Provided that, where a person has a right of pre-emption in respect of a portion only of the property proposed to be sold or foreclosed, the notice to such person shall specify the proportionate amount of the price or the proportionate amount due in respect of such mortgage at which the person proposing to sell or foreclose is willing to sell or redeem such portion of the property, as the case may be.]

Such notice shall be given through the Court within the local limits of whose jurisdiction the property or any part thereof is situate, and shall be deemed sufficiently given if it be stuck up on the chaupal or other public place of the village or city in which the property is situate.

11. Loss of right of pre-emption.—Any person having a right of pre-emption in respect of any property proposed to be sold shall lose such right, unless within three months from the date of such notice he or his agent pays or tenders the price [3][specified in the notice given under the preceding section] to the person so proposing to sell.

12. Right of preemptor on foreclosure.—When the right of pre-emption arises in respect of the foreclosure of a mortgage [4][or a portion of the mortgage], any person entitled to such right may, at any time within three months after the giving of the notice required by section 10, pay or tender to the

1. Ins. by U.P. Act 15 of 1939, s. 2.
2. Ins. by s. 3, *ibid*.
3. Subs. by s. 4, *ibid*., for "aforesaid".
4. Ins. by s. 5, *ibid*.

mortgagee or his successor in title the amount specified in such notice, and shall thereupon acquire a right to purchase the property, [1][or a portion thereof, as the case may be].

On completion of the purchase the person exercising the right of re-emption shall be bound to pay to the mortgagee or his successor in title the amount specified in such notice, together with interest on the principal sum secured by the mortgage [1][or the proportionate amount of such principal sum in respect of the portion of the property in which he possesses the right of pre-emption, as the case may be], at the rate specified by the instrument of mortgage, for any time which has elapsed since the date of the notice, and any additional costs which may have been properly incurred by the mortgagee or his successor in title.

13. Suit to enforce right of pre-emption.—Any person entitled to a right of pre-emption may bring a suit to enforce such right on any of the following grounds (namely) : —

(*a*) that no due notice was given as required by section 10;

(*b*) that tender was made under section 11 or section 12 and refused;

(*c*) in the case of a sale, that the price stated in the notice was not fixed in good faith;

(*d*) in the case of a mortgage, that the amount claimed by the mortgagee was not really due on the footing of the mortgage and was not claimed in good faith, and that it exceeds the fair market-value of the property mortgaged, [2][or the portion of the property mortgaged in respect of which he possesses the right of pre-emption, as the case may be].

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If, in the case of a sale, the Court finds that the price was not fixed in good faith, the «ours shall fix such price as appears to it to be the fair market-value of the property sold, [2][or the portion of the property sold in respect of which he possesses the right of pre-emption, as the case may be].

If, in the case of a mortgage, the Court finds that the amount claimed by the mortgagee was not really due on the footing of the mortgage, and that it was not claimed in good faith and that it exceeds the fair market-value of the property mortgaged [2][or the portion of the property mortgaged in respect of which he possesses the right of pre-emption, as the case may be], the amount to be paid to the mortgagee shall not exceed what the Court finds to be such market-value.

14. Decree to fix time for payment.—If the Court find for the plaintiff, the decree shall specify a day on or before which the purchase-money or the amount to be paid to the mortgagee shall be paid.

15. Effect of non-payment of purchase-money.—If such purchase-money or amount is not paid into Court before it rises on that day, the decree shall become void, and the plaintiff shall, so far only as relates to such sale or mortgage, lose his right of pre-emption over the property to which the decree relates.

1. Ins. by U.P. Act 15 of 1939, s. 5.
2. Ins. by s. 6, ibid.

CHAPTER III
PROCEDURE OF THE COURTS

16. Rule of limitation.—The Judicial Commissioner's Circular No.104 of July, 1860, shall be held to have been a notification within the meaning of section 24 of Act 14 of 1859,[1] and such Act shall be deemed to have been in force in Oudh from the fourth day of July, 1862; and all orders and decrees passed under the rules contained in the said Circular or under the said Act, shall be deemed to have been passed under a law m force for the time being.

Nothing in this section affects the provisions of sections 109, 104, 105, 106, 107 and 108 of the Oudh Rent Act (XIX of 1868)[2] with regard to the limitation of suits under that Act.

17. [*Act 32 of 1871, s. 28, to cease in any district from date of notification that it is no longer under settlement*]**.—***Rep. by the Repealing and Amending Act*, 1891 (12 *of* 1891).

18. [*Recognized agents.*]—*Rep. by the Repealing and Amending Act*, 1891 (12 *of* 1891).

19. Rules of taking evidence.—[3]Section 172 of Act No.8of 1859 is hereby repealed, so far as the province of Oudh is concerned, and the following section is substituted therefore:—

"On the day appointed for the hearing of the suit, or on some other day to which the hearing may be adjourned, the evidence of the witnesses in attendance shall be taken orally in open Court in the presence and hearing and under the personal direction and superintendence of the Judge.

"A note of the essential points of the evidence of each witness is to be taken at the time, and in the course of oral examination, by the officer who tries the case, in his own language, or in English if he is sufficiently acquainted with that language, and such note shall be filed, and shall form part of the record of the case.

"If the evidence be taken down in a different language from that in which it has been given, and the witness does not understand the language in which it is taken down, the witness may require his deposition as taken down to be interpreted to him in the language in which it was given.

"It shall be in the discretion of the Court to take down, or cause to be taken down, any particular question and answer, if there appear any special reason for so doing, or any party or his pleader requires it.

"If any question put to a witness be objected to by either of the parties or their pleaders, and the Court allow the same to be put, the question and the answer shall be taken down, and the objection and the name of the party making it shall be noticed in taking down the depositions, together with the decision of the Court upon the objection.

"The Court shall record such remarks as it may think material respecting the demeanour of the witness while under examination.

[4]["The note as above required may be written and signed by the Judge with his own hand or typed to his dictation in open Court and signed by him within his own hand, and such note shall form part of the record."]

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1. *See* now the Limitation Act, 1908 (9 of 1908).
2. Act 19 of 1868 was rep. by the Oudh Rent Act, 1886 (22 of 1886), s. 2. Act 22 of 1886 has been rep. By the U.P. Tenancy Act, 1939 (U.P. 17 of 1939).
3. *See* now ss. 181 to 190, both inclusive, of the Code of Civil Procedure, 1908 (5 of 1908).
4. Subs. by U.P. Act 24 of 1954, s. 2 and Sch., for the former paragraph.

[1][**20. Execution-sale of ancestral and acquired property in land.—**So much of section 60 of the Code of Civil Procedure, 1908, (5 of 1908) as renders land liable to sale in execution of a decree shall be subject to the following restriction:—No ancestral land shall be sold in satisfaction of a decree without the permission of the State Government.

Explanation.—In this section the words " ancestral land " mean —

(*a*) land forming a mahal or share in or portion of a mahal, which has been owned continuously from the conclusion of the first regular settlement by the proprietor, which term shall include an under-proprietor as defined in section 4, clause (15), of the United Provinces Land-revenue Act, 1901, (U.P.3 of 1901) or by the person or persons from whom such proprietor has directly or indirectly inherited such land;

(*b*) land forming an estate or part of an estate as defined in the Oudh Estates Act, 1869 (1 of 1869);

(*c*) land conferred by the British Government as a reward for services rendered to the State on the owner or on a person from whom such owner has directly or directly inherited such land; or

(*d*) the interest of the holder of a grant of land revenue conferred by the British or any former Government on him or on a person from whom he has directly or indirectly inherited such interest.]

21. [*Appointment of manager of land attached.*]—*Rep. by the Oudh Civil Courts Act,* 1879 (13 *of* 1879).

22. Service of process within jurisdiction of Lucknow civil court.—Notwithstanding anything contained in the said Code, any Civil Court sitting within the local limits of the jurisdiction of the on Lucknow Civil Court, but exercising jurisdiction beyond such limits, may cause summonses, warrants, notices and other processes to be served within the local limits of the jurisdiction of the Lucknow Civil Court without causing the same processes to be served through such Court.

23. [*Section substituted for Act* 19 *of* 1868, *s*. 109.] *— Rep. by the Oudh Rent Act*, 1886 (22 *of* 1886).

24. [*Section substituted for Act* 19 *of* 1868, *section* 118.]*—Rep. by the Oudh Rent Act*, 1886 (22 *of* 1886).

25. [*Right of occupancy in judgment-debtor's sir-land.*]*—Rep. by the Oudh Rent Act*, 1886, *Amendment Act*, 1901 (*U.P*. 4 *of* 1901).

26. Revenue-agents authorized to appear, etc., in rent-suits.—Notwithstanding anything contained in Act No. XX of 1865[2] , all persons duly admitted and enrolled as Revenue-agents under that Act in [3]*** Oudh may appear, plead and act in suits under the Oudh Rent Act[4] (19 of 1868) in the Courts of officers exercising the powers of Assistant Collectors, Deputy Collectors, Collectors and Commissioners under the same Act.

1. Subs. by U.P. Act 3 of 1912, s. 2, for the original section
2. *See* now the Legal Practitioners Act, 1879 (18 of 1879).
3. The words "the territories for the time being under the administration of the Chief Commissioner of" Rep. by the A.O. 1937.
4. *See* now the U.P. Tenancy Act, 1939 (U.P. Act 17 of 1939).

27. Power to make rules for custody and sale of attached property.—With the sanction of the State Government, the [1][High Court] may from time to time make rules consistent with this Act and with the Code of Civil Procedure[2] —

(*a*) for the custody and sale of movable property attached in execution of decrees;

(*b*) for the levy of a fee or commission on the sale of attached property and the disposal of the funds accruing from such fees;

(*c*) as to the appointment and remuneration of persons [3][(not being persons in the service of the Government)] by whom property is to be attached, kept in custody and sold;

(*d*) as to the appointment and remuneration of persons [3][(not being persons in the service of the Government)] by whom local investigations under section 180, and investigations and adjustments of accounts under section 181, of the Code of Civil Procedure[4] are to be made.

28. [*Power to revise decrees and orders of subordinate Courts*.]**—***Rep. by the Oudh Civil Courts Act*, 1879 (13 *of* 1879).

CHAPTER IV

VILLAGE AND ROAD-POLICE

29. Right to nominate village-policemen.—The nomination to the post of village-policeman shall be made by the zamindar of the village, or, where there are more zamindars than one, by the lambardar as their representative; and, where there poll are more lambardars than one, the opinion of the majority (unless there is some special provision to the contrary in the village administration-paper) shall prevail.

30. Obligation to nominate.—Every person authorized to nominate to the office of village-policeman shall, within fifteen days after the occurrence of a vacancy such office, nominate a proper person to the vacant post, and communicate the nomination to the Magistrate of the district.

31. Discretion to appoint or reject nominee.—The person so nominated shall, after due enquiry into his age, character and ability, be appointed or rejected by the State Government.

32. Power to Government to appoint. Procedure in case of rejection of nominee.—In default of such nomination within the said fifteen days, the State Government shall appoint such person as it thinks fit to the vacancy.

If the nomination has been made within the said fifteen days, but the nominee is rejected, the person authorized to nominate shall, within fifteen days from the date of such rejection, nominate another person to the vacant post; and in default of such nomination, or if such nomination has been made but the nominee is again rejected, the State Government shall appoint such person as it thinks fit to the vacancy.

33. Appointment of road police.—Subject to the rules to be framed under section 39 and for the time being in force, the State Government may from time to time appoint persons to be [5][road police].

34. Duties of village and road police-man.—Every village-policeman and every road-policeman shall perform the following duties:**—**

(*a*) he shall give immediate intermission to the officer in charge of the police-station appointed for his village or beat—

1. Subs. by the A.O. 1950, for "Chief Court".
2. *See* now the Code of Civil Procedure, 1908 (5 of 1908).
3. Ins. by the A.O. 1937.
4. *See* now the Code of Civil Procedure, 1908 (5 of 1908), Sch. I, Order 26, rules 9 to 12.
5. Subs. by the A.O. 1937, for "the road-police of his district".

(*1*) of every unnatural, suspicious or sudden death occurring in the village of which he is chaukidar, or within his beat;

(*2*) of each of the following offences occurring in such village or on such beat (that is to say), murder, culpable homicide, rape, dacoity, theft, robbery, mischief by fire, house-breaking, counterfeiting coin, causing grievous hurt, riot, harbouring a proclaimed offender, exposure of a child, concealment of birth, administering stupefying drugs, kidnapping, lurking house-trespass; and

(*3*) of all attempts and preparations to commit, and abetments of, any of the said offences:

(*b*) he shall keep the police informed of all disputes which are likely to lead to any riot or serious affray:

(*c*) he shall arrest all proclaimed offenders, and all persons whom he may find in the act of committing any offence specified in paragraph (*a*), clause (*2*), of this section:

(*d*) he shall observe and from time to time report to the officer in charge of the police-station within the jurisdiction of which his village or beat may be situate, the movements of all bad characters in or on such village or beat:

(*e*) he shall report to the officer in charge of such police-station the arrival of suspicious characters in the neighbourhood:

(*f*) he shall supply to the best of his ability any local intermission which a Magistrate or any officer of police may re" quire, and shall promptly execute all orders issued to him: by competent authority.

IndiaCode

35. Procedure on arrest by village or road police-man.—Whenever a village-policeman or road-policeman arrests any person, he shall take him as soon as possible to the police-station within the jurisdiction of which his village or beat is situated.

36. Dismissal of village or road police-man.—The Magistrate of the district may dismiss any village-police man or road-policeman for any misconduct or neglect of duty.

Where any village-policeman is guilty of neglect of duty or other misconduct, the person authorized to nominate to his office may report him for dismissal to the Magistrate of the district; and such Magistrate shall dismiss him accordingly, unless the Magistrate has reason the think that such dismissal would be improper.

37. Acts punishable.—Every village-policeman and road-policeman guilty of any willful misconduct in his office, or of neglect of duty, such misconduct o neglect not being an offence within the meaning of the Indian Penal Code, (45 of 1860).

or withdrawing from the duties of his office without permission and without having given at least two months, notice of his intention withdraw from such duties to the persons authorized to nominate appoint under sections 29, 32 and 33 (as the case may be),

or offering any unnecessary personal violence to any person in his custody,

Penalty. shall be liable, on conviction before a Magistrate, to a penalty not exceeding three months' pay, or to imprisonment for a period not exceeding three months, or to both.

38. Fines to be credited to such fund as Government appoints.—All fines levied under this Act on village-policemen or road policemen shall be credited to such fund as the State Government from time to time appoints.

CHAPTER V

SUBSIDIARY RULES

39. Power to make rule.—The State Government may, from time to time, [1]* * * make rules consistent with this Act as to—

(*a*) the discipline and remuneration of the village and road police and the regulation of their number, location and duties;

(*b*) the disposal of unclaimed property under Act No.5 of 1861 (for the regulation of police), sections 25, 26 and 27;

(*c*) public health and conservancy at fairs and other large public assemblies, and the maintenance of a proper watch and ward at such fairs and assemblies;

(*d*) imposing [2]* * * taxes for those purposes only;

[3] [(e) the keeping and custody of civil, criminal and revenue records.]

[4]* * * *

40. Publication of rules. — All rules made by the State Government under section 39, and all rules made by the [5][High Court] under section 27, shall be published in the Official Gazette, and shall thereupon have the force of law.

41. Continuance of prior rules as to matters for which rules may be made under the Act.] Rep.by the Repealing and Amending Act, 1891 (12 of 1891).

42. Penalty for breach of rules.—Whoever breaks any rule made or continued under this Act, not being a rule made by the [5][High Court], shall, on conviction before a Magistrate, be punishable with fine which may extend to fifty rupees, or with imprisonment for a term which may extend to six months, or with both.

CHAPTER VI

MISCELLANEOUS

Honorary civil jurisdiction

43. [*Power to invest taluqdars with civil jurisdiction*.]**—***Rep. by the Oudh Civil Courts Acts*, 1879 (13 of 1879.)

Honorary police-officer

44. Honorary police-officers.—The State Government may-, from time to time, confer on any person whom it thinks fit any power which may be exercised by a police-officer under any Act for the time being in force, and withdraw any power so conferred.

Creation and alteration of districts and sub-divisions

45. [*Power to create new districts. Power to form sub-divisions of districts***.]—***Rep .by the United Provinces A*ct, 1890 (20 *of* 1890), *s*. 35.

1. The words "with the previous sanction of the G.G. in C," rep. by Act 14 of 1878, s. 5.
2. The words "with the previous sanction of the G.G. in C," rep. by the A.O. 1937.
3. Subs. *ibid*., for the original cl. (e).
4. Clause (*f*) was omitted by the A.O. 1937, CL. (G) RELATING TO S. 25 OF THIS At was omitted by the Oudh Rent Act, 1836, Amendment Act, 1901 (U.P. 4 of 1901). The proviso was omitted by the A.O. 1937.
5. Subs. by the A.O. 1950 for "Chief Court".

THE FIRST SCHEDULE. — *Rep. by the Repealing Act*, 1938 (1 *of* 1938), *s*. 2 *and Sch.*

IndiaCode

THE SECOND SCHEDULE

(*See* section 3)

PART 1.— BENGAL REGULATIONS

Number and year	Subject	Modifications
XXIII of 1803.	Embezzlement by Native Officers	In section 1 and in section 2, clause *First*, before "sezawals," insert "tahsildars". In section 2, after the first clause, insert "*Second*.—The responsibility of the sureties of tahsildars extends to the several cases provided for in this Regulation." In section 3, for "Dewanny Adawlut of the Zillah, the Judge of which Court shall detain him," *read* " District where he shall be detained;" for " real or personal," *read* " movable or immovable ;" [1]* * * and omit the words and figures "and the rules in Regulation XXVIII, 1803, regarding suits so carried on by the Collectors are to be held applicable to it." [2] * * * Omit section 8.
[3]X of 1804	Punishment by Courts-martial of certain State offences	Omit section 1. In section 2, for "the British territories subject to the Government of the Presidency of Fort William" *read* "the territories under the administration of the Chief Commissioner of Oudh". In section 3, for "real and personal" read "movable or immovable".
XI of 1806	Assistance to troops and travellers passing through districts.	Omit sections 1, 7, 9 to 20 (both inclusive), and so much of the rest of the Regulation as authorizes Collectors and their Native officers, or Magistrates and their police-officers, to give their Official aid in procuring coolies for the purpose of facilitating the march of troops or the progress of travellers. For "Collectors of Revenue" and "Collector" read" Deputy. commissioner" throughout the Regulation. In sections 2 and 3, for " the Company's territories " read " Oudh ". In section 2, omit the last sentence. In section 4, clause Third, for "Central Government" read " State Government." In section 5, omit "the Companys ; [4]* * * In section 6, for " Magistrate " read " Deputy Commissioner," and for " on the part of the Collector" read "by the Deputy Commissioner".

1. The words "for 'city' read 'jurisdiction' " were rep. by Act 12 of 1891; and the words "for 'Board of Revenue' read 'Chief Commissioner' " were rep. by Act 20 of 1890, s.35.
2. The words "In section 4, omit the word or in either of the cities of Patna, Dacca and Moorshedabad," were rep. by Act 12 of 1891.
3. Rep. by Act 4 of 1922, s. 3 and Sch.
4. The words "and for 'Board of Revenue' read 'Chief Commissioner' " were rep. by Act 20 of 1890, s. 35.

Number and year	Subject	Modifications
		In section 8, for "the Company's provinces" *read* "Oudh" [1] * * *. .
[2] * * *	* * *	* * * *
[3] III of 1818	State Prisoners	In section 1, omit "situated within the territories dependent on the Presidency of Fort William," and from "which are to take effect to the end of the section. In section 2, clause Third, omit "within the territories subject to the Presidency of Fort William ". In section 4, omit clause First. In the same section, clause Second, for" Zillah or City Magistrate "read "Deputy Commissioner," and for " Judge of Circuit" *read* " Commissioner of Division". In section 9, for " to the Provincial Court of Appeal and Circuit and to the Sudder Dewanny Adawlut And Nizamut Adawlut " read " and to the Judicial Commissioner ". Omit section 10.
[4] * * *	* * *	* * *
XI of 1822	Non-liability of Government for errors of a Court of Justice.	*Omit* the whole except section 38.
VI of 1825	Supply of troops on the march.	In the preamble, *omit* the last twenty words. In section 2, *omit* "in pursuance of section III, Regulation XI, 1806," and omit "sicca". In section 4, *for* "Board of Revenue in whose jurisdiction the district may be situate "and "Board" read "Commissioner ". In section 5, *omit* "on the stamped paper prescribed for other appeals to the Revenue Boards" and *for* "the proper Board" and "the Board" *read* "the Commissioner".

1. The words and figures "and omit the words and figures '(under the rules prescribed by Regulation 5 of 1804.)' and 'in Regulation 27 of 1803," were rep. by Act 12 of 1891.
2. The entries relating to Bengal Regulations 17 of 1806, 20 of 1810 and 5 of 1817 were rep. by Acts 4 of 1882, 13 of 1889 and 6 of 1878, respectively.
3. This Regulation was rep. by Act 48 of 1952, s. 2 and Sch. I.
4. The entry relating to Bengal Regulation 6 of 1819 was rep. by Act 12 of 1891.

Number and year	Subject	Modifications
XI of 1825	Alluvion and Diluvion	*Omit* section 1. In section 3, omit " either " and " or the sea ". In section 4, clause *First*, *Omit* "whether" and "or of the sea," and for " the provisions of Regulation II, 1819, or of any other Regulation in force," read " any law in force for the time being;" clause *Third*, omit " or in the sea " and " or sea;" clause *Fifth*, omit " or the sea". In section 5, for "Zillah and City Magistrates "read "Deputy Commissioners".
[1]* * *	* * *	* * *

PART II.--ACTS OF THE GOVERNOR GENERAL IN COUNCIL

[2]* * *	* * *	* * *
[3]XX of 1856	Chaukidars	In the preamble, *after* "Bengal" add "and the territories under the administration of the Chief Commissioner of Oudh". *Omit* the words "of circuit" wherever they occur after "Commissioner". *Omit* section 40.
XIII of 1857	Opium	In the title, *after* "the Presidency of Fort William in Bengal," *read* "and the territories under the administration of the Chief Commissioner of Oudh." [4]*** In section 3, *omit* "being covenanted servants of the Company."
[5]* * *	* * *	* * *
[6]XXII of 1871.	Chaukidars	In section 1, *after* "Presidency" insert "or territories ". In section 3, *omit* the words " of circuit". *Omit* section 6.

1. The entry relating to Bengal Regulation 20 of 1825 was rep. by Act 10 of 1882.
2. The entry relating to Act 19 of 1853 was rep. by Act 1 of 1903.
3. Act 20 of 1856 has been repealed in the U.P. by the U.P. Town Area Act, 1914 (U.P. 2 of 1914).
4. The modification relating to s. 2 was rep. by Act 12 of 1891.
5. The entry relating to the Minors Act, 1858 (40 of 1858), was rep. by Act 3 of 1890.
6. Act 22 of 1871 was rep. in the U.P. by Act 18 of 1919 and generally by Act 1 of 1938.